

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUBC023967: BLAKE R DUNDAS vs FORD MOTOR COMPANY, et al.

07/29/2026 in Department 44

Motion for Attorney Fees/Costs Pursuant to Civil Code 1794(d)

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff Blake R. Dundas’ (“Plaintiff”) Motion for Attorneys Fees Pursuant to Civil Code section 1794, subdivision (d).

Tentative Ruling:

Plaintiffs’ Motion for Attorneys’ Fees, Costs, and Expenses is GRANTED as follows: attorney fees in the total amount of \$45,175. The Court awards a .25 multiplier in recognition of the good result obtained and the uncertainty associated with this contingency matter, for a total award of \$56,468.75.

Discussion:

The prevailing car buyer in a Song-Beverly Warranty Act lawsuit “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Code Civ. Proc., § 1794, subd. (d); *Reck v. FCA US LLC* (2021) 64 Cal.App.5th 682, 691 [“A buyer who prevails in an action under the Song-Beverly Act may also recover reasonable attorney fees. (citing § 1794, subd. (d)).”]) The burden is on the prevailing buyer to

establish that the fees incurred were allowable, reasonably necessary to the conduct of the litigation, and were reasonable in amount. (*Hanna v. Mercedes-Benz USA, LLC* (2019) 36 Cal.App.5th 493, 507.)

While section 1794 entitles a prevailing plaintiff to a mandatory fee award, the amount of the award is fixed within the court's broad discretion. (*Reck v. FCA US LLC* (2021) 64 Cal.App.5th 682.) In evaluating the fee request, a trial court "must eschew any rubber stamp approval in favor of an independent evaluation" to determine the hours claimed were reasonably expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309.) The lodestar method, i.e., number of hours reasonably expended multiplied by a reasonable hourly rate, subject to adjustment based on the factors set forth in *Ketchum v. Moses* is used to calculate attorney fee awards in lemon law cases. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132. citing *Serrano v. Priest* (1977) 20 Cal.3d 25, 49 [contingent nature of the fee, risk of nonpayment undertaken at outset of representation, novelty and difficulty of questions presented, skill displayed in litigating the matter, extent to which the engagement precluded other employment, and results achieved for the class]; see also *Reck, supra*, at p. 691.) The trial court "is the best judge of the value of professional services rendered" in that judge's court. (*Serrano v. Priest, supra*, 20 Cal.3d at p. 49.)

In this case, Plaintiff seeks \$92,502.50 of lodestar fees with a multiplier of 1.5 or 2.0 that would bring the total fee award to \$138,753.75 - \$185,005.00. Plaintiff seeks the award in connection with his status as a prevailing party following settlement of his consumer lawsuit under the Song-Beverly Warranty Act. Costs were previously ordered in the amount of \$11,052.79 following the Court's April 7, 2026 ruling on Defendant Ford Motor Company's motion to tax Plaintiff's cost bill. That Court granted Defendant's motion in part, reducing the costs from the amount sought \$13,441.41 by \$2,388.62.

Plaintiff's attorneys are with the law firms of O'Connor Law Group, PC and Hajduk Law, PC. Mark O'Connor is the principal of O'Connor Law Group, and has more than 35-years experience as a lawyer. He has been licensed in California since 1991, and has specialized in automotive issues, representing both automotive manufacturers on the defense side and consumers. He has tried many cases to verdict on both the defense and plaintiff's side, and is a member of the American Board of Trial Advocates, Orange County chapter. Mr. O'Connor seeks an hourly rate of \$750 in connection with the 3.5 hours he billed to this case. The primary handling attorney on this file with the O'Connor law group is Shawna Melton, who billed 118.8 hours to this file, and seeks a rate of \$650 per hour. Ms. Melton has been a licensed attorney since June 2011 and has over 14 years experience in lemon law litigation. She has litigated many cases through with and serving as both lead trial counsel and second chair. David Womak and Rebecca Goethals are certified paralegals who bill hourly rates of \$200 and \$225, respectively. Mr. Womak billed 10.3 hours to this case, and Ms. Goethals billed 30.1 hours. Plaintiff's counsel supports the request for fees with the Declarations of Mr. O'Connor, Ms. Melton, Mr. Womak, and Ms. Goethals. These declarations detail their respective professional experience and credentials. However, fees are also requested for additional people who billed an additional \$3,825 to this file whose professional experience and credentials are not provided: Amy Hadjuk (\$500 hr. x 1.7 hrs = \$850); Kimya Assadkhan (\$250 hr. x 8.7 hrs = \$2,175), Matthew Goethals, Esq. (\$500 hr x 1.6 hrs = \$800).

Plaintiff initiated the lawsuit on April 22, 2024, and trial was scheduled to occur on November 3, 2025. Judgment was entered on November 3, 2025, after Defendant accepted Plaintiff's Code of Civil Procedure section 998 offer in the amount of \$100,000, exclusive of attorney fees and costs. Plaintiff filed this unopposed motion on January 6, 2026. Defendant did not file an opposition to the Motion.

During the pendency of the litigation, the parties engaged in basic written discovery and took and defended four depositions. In addition, several routine hearings occurred to include a case management conference, one hearing on two discovery motions filed by Plaintiff, a case management conference, and an ex parte hearing scheduled by the defendant. The Court has reviewed Plaintiff's billing entries and finds that Plaintiff's claimed time spent on this case is excessive. For example, on February 13, 2025, Plaintiff sought \$5,070 in discovery sanctions in connection with the two discovery motions. Plaintiff's request was based on Ms. Melton's hourly rate of \$550 for 9 hours she claimed to spend preparing the motions and attending the hearing, plus \$120 in filing fees. The Court found the amount requested to be excessive in light of the basic and routine nature of the discovery motions and reduced the award to \$3,120. Now, in connection with this fee motion, Ms. Melton seeks to recover for 12.5 hours she spent preparing the motions at an increased rate of \$650 per hour, for a total of \$8,125. Notably, Ms. Melton included two entries of .2 each for the review of the tentative ruling in connection with each motion, however, the court issued only one tentative ruling for both motions. Ms. Melton also bills for 1.5 hours in connection with the preparation of a notice of deposition of a PMQ for Ford. 1.5 hours for the preparation of a notice of deposition that is common among and across lemon law cases is excessive. Ms. Melton also seeks to recover 4.9 hours for "anticipated" review of an opposition to this motion, for the preparation of a reply brief. This motion, however, is unopposed. Overall, the billing entries follow this pattern of excessive billing for routine matters by Ms. Melton, Ms. Goethals, and Mr. Womack, and with the exception of the time billed by Mr. O'Connor which the Court finds to be reasonable.

Similarly, the Court finds that the rates charged are not reasonable given the Court's familiarity with the legal market in Ventura County. This is true even though both attorneys for whom the Court had the benefit of a description of their credentials and professional experience are well qualified and appear to be experts in the lemon law field. A reasonable rate for an attorney of Mr. O'Connor's and Ms. Melton's respective caliber in Ventura county is \$650 and \$475 respectively. Additionally, the Court finds that a reasonably hourly rate for paralegals is \$175 per hour.

Worker	Reasonable Rate	Reasonable Time	Total Award
David Womack	\$175	7	\$1,225
Mark O'Connor	\$650	3.5	\$2,275
Rebecca Goethals	\$175	21	\$3,675
Shawna Melton	\$475	80	\$38,000
Total			\$45,175

The Court does not allow a fee award for the persons whose professional experience and credentials description were not provided to the Court to include Ms. Hajduk, Ms. Assadkhan, and Mr. Goethals. While the routine nature of this lemon law action weighs against the award of a multiplier in this case, the Court will award a multiplier of .25 in recognition of the uncertainties associated with this contingency matter and the good result obtained.

Plaintiff's counsel shall give notice.